

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JUN WEI,

Petitioner

VS.

MANSHUI CHAN,

Respondent

) Case Number: FDI-25-801335

) Hearing Date: May 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: BIFURCATION FOR STATUS ONLY JUDGMENT OF DISSOLUTION
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jun Wei and Respondent Mansui Chan. The parties married on 12/27/1996. Neither party listed a date of separation on their Petition or Response. The parties have no minor children in common. Petitioner is represented by attorney John Chow. Respondent was self-represented when the Response to the Petition was filed on 8/4/2025. However, in Respondent's Declaration Regarding Service of Declaration of Disclosure filed 3/16/2026, attorney Joseph Tse is listed as Respondent's attorney (the Court notes, however, that there is no Substitution of Attorney on file for Joseph Tse).
- 2) On for hearing is Petitioner's Request for Order filed 1/20/2026 asking the Court to bifurcate and terminate the parties' marital status.
- 3) Per the Proof of Service filed 1/30/2026, Petitioner's Request for Order was mailed to Respondent on 1/22/2026.

- 4) The prior 3/19/2026 hearing was continued to 5/21/2026 by the Court because Petitioner did not file the mandatory Request for Separate Trial (FL-315) form with Petitioner's 1/20/2026 Request for Order.
- 5) On 5/7/2026, Petitioner filed a Declaration to which a Request for Separate Trial (FL-315) form is attached. Under the prompt which reads: "All pension or retirement plans in which the community has an interest are listed below," Petitioner wrote "Petitioner's FL 160 discloses a related asset under profit sharing, IRAs, deferred compensation, and annuities, with division reserved."
- 6) There is no Proof of Service on file showing service of Petitioner's 5/7/2026 Declaration.
- 7) Respondent has not filed any pleadings responding to Petitioner's 1/20/2026 Request for Order.

B. Findings and Order

- 1) The hearing on Petitioner's request to bifurcate and terminate the parties' marital status is continued once more to **Thursday, 8/13/2026 at 9:00 AM in Dept. 404.**
- 2) At least 20 calendar days prior to the next hearing date, Petitioner shall file and serve a new Request for Separate Trial (FL-315) form which specifies what type of asset is the asset Petitioner listed under the "profit sharing, IRAs, deferred compensation, and annuities" section of Petitioner's Property Declaration (FL-160). For instance, is it a pension plan, is it an IRA, is it a 401(k) and what is the name of the plan. The Court needs this information in order to assess whether the retirement plan needs to be joined as a party to this proceeding under Family Code section 2337(d)(1).
- 3) Additionally, at least 20 calendar days prior to the next hearing date, Petitioner must file a Proof of Service evidencing service of the new Request for Separate Trial (FL-315) form.
- 4) Petitioner's attorney shall prepare the Findings and Order After Hearing.
- 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).